

Deepak Kumar v. Ankit Kumar Yadav, Executive Engineer

High Court of Judicature at Allahabad · Single Judge · 9 February 2022 · Contempt Application (Civil) No. 6054 of 2021 · **Contempt disposed; one further month to decide Clause 6.5 representation.**

HEADNOTE

On a civil contempt alleging that the Executive Engineer had not decided a Clause 6.5 Supply Code representation as directed in a 2 November 2021 writ seeking restoration of a personal tubewell connection, the Allahabad High Court found a prima facie case of willful disobedience but issued no notice, granted one further month to comply from production of a self-verified copy, and disposed of the application without deciding the underlying restoration dispute.

FACTUAL SUMMARY

The applicant had obtained a 2 November 2021 writ directing the Executive Engineer to decide, by a reasoned speaking order within three weeks, a Clause 6.5 Supply Code representation seeking restoration of a personal tubewell electricity connection. A copy was sent by registered post on 15 November 2021. Alleging continued non-compliance, he filed this Section 12 civil contempt against the Executive Engineer.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

contempt of writ directing Clause 6.5 decision

HOLDING

Where a writ has directed the Executive Engineer only to decide a Clause 6.5 representation by a reasoned speaking order, a subsequent contempt alleging non-compliance may be disposed of by granting further time to comply, without notice and without deciding the consumer's restoration or billing claim on merits; the applicant may return if the writ remains uncomplied. ¶ 1

PRINCIPLE TAGS

contempt-of-6.5-writ-does-not-redecide-bill

The Court disposed of the contempt by granting one further month to decide the Clause 6.5 representation and did not examine or redecide the tubewell restoration claim. ¶ 1

clause-6.5-representation-executive-engineer

The underlying writ, whose disobedience was alleged, had required the Executive Engineer to decide the applicant's Clause 6.5 representation by a reasoned speaking order within three weeks. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE CLAUSE 6.5 REPRESENTATION AND RESTORATION OF THE PERSONAL TUBEWELL CONNECTION

The contempt court granted further time to comply with the writ and did not decide the electricity dispute. ¶ 1

NOT DECIDED — FINAL FINDING OF WILLFUL DISOBEDIENCE

Only a prima facie case was recorded; no notice was issued and the application was disposed of at this stage. ¶ 1